

2.	25CV0266	HEIDI PEREZ VS. COUNTY OF EL DORADO
MOTION TO CONSOLIDATE ACTIONS		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On May 22, 2026, Defendant/Cross-Complainant/Cross-Defendant, Thomas Edward Fitch (“Defendant”) filed a Notice of Motion to Consolidate Actions; Memorandum of Points and Authorities; Declaration of Denise M. Di Mascio. Notice of Hearing was filed on May 27, 2026. There is no opposition in the Court’s file.

Defendant requests an order pursuant to Code of Civil Procedure § 1048(a) consolidating *Heidi Perez v. County of El Dorado et.al.*, Case No. 25CV0266 (the ‘Lead Case’) with *Republic Indemnity Company of America v. Thomas Edward Fitch*, Case No. 26CV0048 (the ‘Subrogation Action’). Defendant alleges that the actions involve common questions of fact in that Plaintiff, Republic Indemnity Company of America (“Plaintiff Republic”), asserts a subrogation interest from any recovery received by Plaintiff, Heidi Perez (“Plaintiff Perez”), and the action stems from the same claims and defenses regarding the injuries sustained by Plaintiff Perez.

Code of Civil Procedure § 1048(a) provides: “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”

These matters stem from an incident which occurred on March 21, 2024, wherein Plaintiff Perez was standing on the bridge on Mount Murphy Road east of State Route 49, within the unincorporated area of El Dorado County. Plaintiff Perez alleges, in part, Defendant negligently operated his vehicle, striking Plaintiff Perez and causing injury. Plaintiff Perez was in the course and scope of her employment with Katherine Delmar Burke School at the time of the incident. Plaintiff Perez initiated a claim for workers’ compensation benefits and received benefits through Plaintiff Republic.

In considering a motion for consolidation, the Court considers the following:

1. Timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether *discovery* in one or more of the cases has proceeded without all parties present;
2. Complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury;
3. Prejudice: i.e., whether consolidation would adversely affect the rights of any party.

July 24, 2026
Dept. 9
Civil Tentative Rulings

Defendant asserts the motion to consolidate is timely, as he only recently answered the Complaint in the Subrogation Action and is awaiting discovery responses from Defendant Republic. Plaintiff and Defendant executed a Good Faith Order on February 17, 2026. The terms of the settlement required Plaintiff to resolve any and all liens, including any liens for workers' compensation benefits. Before the settlement could be funded, Defendant was served with the Subrogation Action. To date, neither Plaintiff nor Defendant have been given information regarding the amount sought in the Subrogation Action and an opportunity to resolve

The Court further notes Defendant's, County of El Dorado, unopposed ex parte application to continue trial was granted and trial has been continued to April 13, 2027.

Defendant contends neither of the actions are complex such that they would cause jury or judge confusion. In the lead case, Plaintiff seeks both economic and noneconomic damages for her injuries. As for Plaintiff's economic damages, there are questions as to what Plaintiff Republic would be responsible to pay and the amount thereof. This would ensure that consistent rulings are reached with respect to each of the questions presented.

Lastly, Defendant asserts that all Parties would be benefited by having the actions consolidated to ensure one consistent and equitable ruling, while ensuring convenience of the parties and promoting judicial economy.

California Rules of Court, Rule 3.350 (Consolidation of Cases) provides further requirements for consolidation of cases:

(a) Requirements of motion

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

Absent a stipulation to consolidate, a noticed and written motion to consolidate is required. *Sutter Health Uninsured Pricing Cases* (2009) 171 Cal.App.4th 495, 514.

July 24, 2026
Dept. 9
Civil Tentative Rulings

The Court is not in receipt of the notice of motion in the Subrogation Action. The Court is inclined to grant Defendant's motion to consolidate upon stipulation or the filing of the notice of motion in the Subrogation Action in compliance with California Rules of Court, Rule 3.350.

TENTATIVE RULING #2:

APPEARANCES REQUIRED FRIDAY, JULY 24, 2026, AT 8:30 AM IN DEPARTMENT NINE.